

and in one case "heirs of the body" was so construed, where a testator had devised to the separate use of a *feme covert* for life, so as she alone should receive the rent, and the husband should not intermeddle therewith, and *after her decease* in trust for the heirs of her body; for, from the limitation to the heirs immediately after the wife's decease, coupled with the direction that the husband should not intermeddle with the estate, the Court collected the intention of excluding the husband's curtesy, an object which could only be accomplished by giving to "heirs of the body" the construction of words of purchase (*e*).

"A. and the heirs of his body, as counsel shall advise," &c. — And a direction to settle on A. and the heirs of his body "as counsel shall advise" (*f*), or "as the executors shall think fit" (*g*), is strong collateral evidence, that something more was intended than a simple estate tail.

**Rule in Shelley's case not applicable where the life estate is to the separate use.** — Sir L. Shadwell thought that if a testator directed an estate to be settled on a *feme covert* for life, for her *separate use*, and at her death on her *issue*, the feme would not be tenant in tail, for the separate use requiring the life estate to be vested in trustees (*h*), the equitable estate in the feme could not unite with the legal estate in the issue, and therefore the rule in Shelley's case would not apply (*i*).

\* **Trevor v. Trevor.** — Where the trust was to settle [\*120] on A. for life, *without impeachment of waste*, with remainder to his issue in tail male in *strict settlement*, the Court directed the estates to be settled on A. for life, without impeachment of waste, with remainder to his sons successively in tail male, with remainder to the daughters, as tenants in common in tail male, with cross remainders in tail male, and

ance are not to be used, must be plainly manifested by the *first instrument*, and will not be assumed *merely because the trust is executory*. *Sackville-West v. Viscount Holmesdale*, 4 L. R. H. L. 555, *per* L. C.; and see *Duncan v. Bluett*, 4 I. R. Eq. 469.

(*e*) *Roberts v. Dixwell*, 1 Atk. 607;

S. C. West's Rep. t. Lord Hardwicke, 536.

(*f*) *White v. Carter*, 2 Eden, 366; reheard, Amb. 670.

(*g*) *Read v. Snell*, 2 Atk. 642.

[(*h*) See now 45 & 46 Vict. c. 75, s. 1.]

(*i*) See *Stonor v. Curwen*, 5 Sim. 268; *Earl of Verulam v. Bathurst*, 13